

Open Records Project v. Department of Energy - Memorandum Opinion and Order

Memorandum Opinion and Order in Open Records Project v. Department of Energy.

Procedural posture: District court granted summary judgment to the agency after reviewing sealed declarations and sample withheld records in camera. Record material:

The public docket contains a redacted declaration but the proposed appendix includes unredacted material. Issue: Public access and redaction obligations. Standard of

review: abuse of discretion and de novo legal review. Record excerpt: Vaughn index

excerpt. The Vaughn index groups withheld records into categories and cites exemption

rationales. Nature of suit: Freedom of Information Act. Lower tribunal: U.S. District

Court for the District of Maryland.